RESOLUTION NO. 2026-058

A RESOLUTION OF THE BOARD OF SUPERVISORS OF THE COUNTY OF SHASTA CALLING AN ELECTION AND CONSOLIDATING IT WITH THE NOVEMBER 3, 2026, GENERAL ELECTION FOR THE PURPOSE OF SUBMITTING TO THE VOTERS A MEASURE TO ADD A SECTION TO SHASTA COUNTY'S CHARTER

WHEREAS, the Board of Supervisors ("Board") of the County of Shasta ("County") desires to place a ballot measure before the voters during the November 3, 2026, general election to adopt an ordinance adding to Ordinance No. SCC 2023-06 ("Ordinance") which established the County as a California Charter County ("Charter"); and

WHEREAS, the Charter presently addresses vacancies on the Board of Supervisors; and

WHEREAS, the electors approved the Charter with 55.70% approval on the March 5, 2024, primary election; and

WHEREAS, the Board desires to add limitations on the County's exercise of eminent domain to the Charter and submit it to the electorate for their consideration during the next regularly scheduled election.

NOW, THEREFORE, BE IT RESOLVED that the Board of Supervisors of the County of Shasta finds that:

1. The foregoing recitals are true and correct, and the Board so finds and determines.

2. The ordinance adding to the Charter is as set forth in Exhibit A to this resolution.

3. Pursuant to the provisions of Elections Code Section 9140 and Government Code Section 23711, the Board of Supervisors hereby approves the ordinance, the form thereof, and orders and proclaims that the ordinance shall be submitted to the voters of the County of Shasta at the General Election to be held and conducted on the 3rd day of November, 2026. The manner of holding the election and the procedure for voting for and against the question presented shall be as set forth in the Elections Code for a general election.

4. The Shasta County Clerk/Registrar of Voters is directed to assign an appropriate letter to this measure in a manner consistent with Elections Code Section 13116.

5. Elections Code Sections 9160, et seq., shall apply to this election.

6. In accordance with Section 13119 of the Elections Code, the following measure shall be submitted as a measure on the ballot at said General Election, and that the

County Clerk/Registrar of Voters be, and hereby is, instructed to place the same on the ballot at said election in the following form:

Shall Measure ____ (Adding to the Shasta County Charter) be adopted? This measure adds a subsection to the Shasta County Charter. The proposed addition would allow for members of the Board of Supervisors to appoint or call for a special election to fill an unplanned mid-term vacancy of designated elected department heads.
YES ____ NO ____

7. The impartial analysis by the County Counsel in the form required by Elections Code Section 9160 (b) shall be prepared and filed with the County Clerk/Registrar of Voters on a date to be determined by the County Clerk/Registrar of Voters pursuant to Elections Code Section 9163.

8. The Shasta County Auditor-Controller is not directed to prepare a fiscal impact statement as the adoption of the Amendment would not have a financial impact on the County.

9. The entire text of the Amendment shall not be printed in the voter information section of the sample ballot and instead, pursuant to Elections Code Section 9160, shall be printed immediately below the County Counsel's impartial analysis, in no less than 10-point boldface type, a legend substantially as follows: "The above statement is an impartial analysis of Ordinance or Measure ____. If you desire a copy of the ordinance or measure, please call the elections official's office at (530-225-5730) and a copy will be mailed at no cost to you." Pursuant to Elections Code Section 9160, the Shasta County Clerk/Registrar of Voters may, at their discretion, add the following message: "You may also access the full text of the measure on the county website at the following website address: (https://elections.shastacounty.gov)."

10. Pursuant to Government Code Section 25000, this measure requires the approval of a majority of the qualified electors casting votes.

11. This Proclamation of Election is hereby issued for said election and the measure to be voted on in accordance with the terms hereinabove stated.

DULY PASSED AND ADOPTED this 23rd day of June, 2026, by the Board of Supervisors of the County of Shasta by the following vote:

AYES:	Supervisors Harmon, Kelstrom, and Crye
NOES:	Supervisors Plummer and Long
ABSENT:	None
ABSTAIN:	None
RECUSE:	None

CHRIS KELSTROM, CHAIR
Board of Supervisors
County of Shasta
State of California

ATTEST:

DAVID J. RICKERT
Clerk of the Board of Supervisors

By: _____
Deputy

APPROVED AS TO FORM:

JOSEPH LARMOUR
County Counsel

Exhibit A

ORDINANCE NO. SCC 2026-XX

AN ORDINANCE OF THE BOARD OF SUPERVISORS OF THE COUNTY OF SHASTA ADDING LIMITATIONS ON THE EXERCISE OF EMINENT DOMAIN TO THE SHASTA COUNTY CHARTER

The Board of Supervisors of the County of Shasta ordains as follows:

SECTION I.

This section is added to the Shasta County Charter, within the Shasta County Code, following the last subsection, and shall read as follows:

Limitation on Exercise of Eminent Domain

1. Notwithstanding any other provision of law, the County may not exercise the power of eminent domain to acquire property from any private owner thereof, without such owner's consent, when the purpose of the acquisition is to convey the property so acquired to any private party. As used in this section, "owner" means the owner or owners of the fee title interest in the property to be acquired.

SECTION II.

If any section, subsection, sentence, clause, phrase, or provision of this ordinance or its application to any person or circumstance is held invalid for any reason, the invalidity does not affect other provisions or applications of this ordinance that can be given effect without the invalid provision or application, and to this end the provisions of this ordinance and every section, subsection, sentence, clause, phrase, or provision thereof irrespective of the fact that any one or more sections, subsections, sentences, clauses, phrases, or provisions be declared unconstitutional or invalid.

SECTION III.

All former ordinances and resolutions, or parts thereof, conflicting or inconsistent with the provisions of this Ordinance are hereby superseded by this ordinance. The adoption of this ordinance shall not in any manner affect any action or prosecution for violation of ordinances, which violations were committed prior to the effective date hereof, be construed as a waiver of any license, fee, or penalty required by or resulting from any such ordinance, or affect the validity of any bond (or cash deposit in lieu thereof) required to be posted, filed, or deposited pursuant to such ordinance.

SECTION IV.

This ordinance shall take effect and be in full force and effect on November 3, 2026, after certification of the vote, if the measure is approved by a majority of the electors voting on the

measure at the election held that day. This ordinance shall then be operative on January 1, 2027. The Clerk shall cause this ordinance to be published as required by law.

DULY PASSED AND ADOPTED this 14th day of July, 2026, by the Board of Supervisors of the County of Shasta by the following vote:

AYES:	Supervisors
NOES:	X
ABSENT:	X
ABSTAIN:	X
RECUSE:	X

_____

CHRIS KELSTROM, CHAIR
Board of Supervisors
County of Shasta
State of California

ATTEST:

DAVID J. RICKERT
Clerk of the Board of Supervisors

By: _____
Deputy

APPROVED AS TO FORM:

JOSEPH LARMOUR
County Counsel

_____